

Professorship of Corporate Law

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Business Law

Writing Workshop

Summer term 2026



Characteristics of a legal opinion

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- **General requirements:**
 - Write a **continuous, handwritten text** with complete sentences
 - Try to write **readably**

- **Special requirements for a legal opinion:**
 - Although it is called opinion, it is an **objective text**
 - Legal opinion style uses the **if ... then technique**
 - Stick mostly to the **IRAC scheme**
 - Use the common **structure levels**
 - Start each new structure level with a new **paragraph**
 - **Cite the law** accurately and correctly

Preparation is Key

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Case Facts

Art dealer D is employed by wealthy art collector C and regularly searches for her in galleries and studios for special pieces of art. Most of C's collection consists of sculptures with animal motifs, especially those by her favorite artist A.

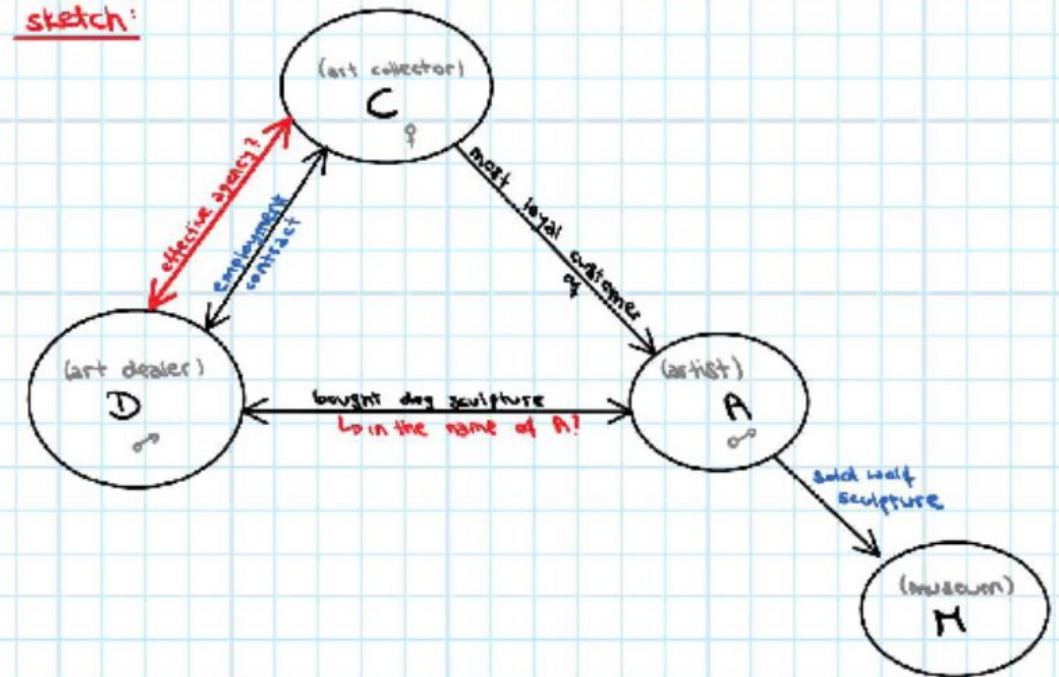
As C is A's most loyal customer, A reveals to her in advance that he is working on a particularly interesting and unusual wolf sculpture made of bronze. On Monday C calls D so that he can secure the sculpture for her before other art lovers discover the magnificent piece. But when D arrives at A's studio, the sculpture has already been sold to museum M during the weekend.

D, who knows how much C likes A's sculptures, does not want to go back to her empty-handed. D therefore bought a hunting dog sculpture also of bronze that is very close to the desired sculpture and will fit in well with C's collection. A directly assumes that this purchase must be an extension of C's collection.

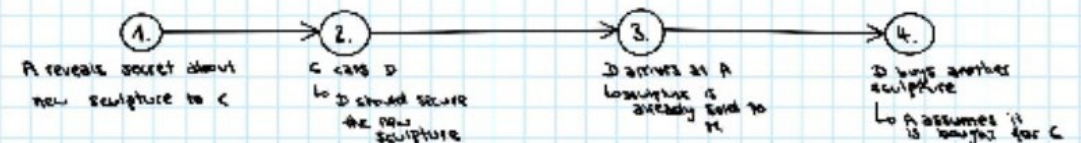
Question:

Did D effectively represent C when he concluded the contract with A?

sketch:



time line:



A. Effective representation of C by D

I. Own DoI of D pursuant to §164 sec 1. BGB (+)

- D went to A's studio and bought a hunting dog sculpture

II. Principle of Publicity §164 sec. 1 BGB (+)

- D went to A's studio in order to buy the wolf sculpture in the name of C
- it can be assumed that A already knows D as an agent for C, due to former purchase agreements ("D regularly searches for C for special art")
- "A directly assumes that this purchase (hunting dog sculpture) must be an extension of C's collection"

III. Power of Representation §164 sec. 1 BGB (-)

1. agent needs to act within his power of agency (-)

- D drives to A on behalf of C in order to buy the wolf sculpture
→ only has authority for that
- D buys other sculpture without asking C if that is okay
→ D exceeded the scope of his power of representation

2. §179 sec. 1 BGB applicable: D isn't authorised to buy sth else than the specific sculpture, however he bought another one. Therefore D is an unauthorised agent (+)

IV. Result: No effective representation of C by D

It is to examine whether D effectively represented C when he concluded the contract with A.

At first, it is questionable if we have a valid purchasing contract according to §433. Therefore, the essentialia negotii are needed and given. Additionally we require to matching DoIs, namely offer & acceptance. This is also given, therefore a contract is given.

Additionally it needs to be examined if we have valid agency according to §164 ~~BGB~~ sec. 1 BGB.

For this a DoI within the power of agency in the name of the principal is needed. But here D acts in the name of the principal acc. to §164 sec. 1, II as A knows that D is employed by C to collect Art because A directly assumes that this purchase must be for C's collection. Secondly the DoI needs to be given. As D doesn't want to go back with empty hands he buys another sculpture. Therefore he gives his own DoI.

Thirdly it is to examine whether D acted within his power of agency while buying another sculpture. This ~~could~~ ^{can} be obtained by statutory provisions (not given) or by Power of attorney according to

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Common mistakes – No paragraphs

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Business Law I

Legal opinion style - case

D could have effectively represented C as an agent pursuant to § 164 sec. 1 BGB when he concluded the contract with A.

For an effective agency a declaration of intent has to be made in the name of the principal within the scope of the power of agency (§ 164 I 1 BGB).

An own declaration of intent is a statement or an action to achieve a distinct legal outcome.

In the given case D has bought the sculpture from A. Therefore it is reasonable to assume that they have concluded a valid purchase agreement pursuant to § 433 I.

Hence an own declaration of intent is given.

Secondly, The agent, here D, has to declare that he is acting on the principal's, here C's, behalf. This can be explicit or implicit.

Did D rep C effectively with A?

It is necessary to examine if there is effective agency between the principal C, and the agent D. In order for agency to be effective, according to BGB § 164 sec. 1, a few conditions must be met. Firstly, a declaration of intent by the agent is needed. In the case, D makes a Declaration of intent when he bought a sculpture from A, meeting the first condition of an effective agency. Secondly, there must be principal of publicity, which implies that agent D must make it known to A that D is acting on behalf of C. In the case, D does not explicitly say that he represents C. However, according to BGB § 164 sec. 1 s. 2, D does not have to explicitly declare his representation, as his employment by C can be gathered by A, therefore meeting the second condition of an effective agency. Thirdly, D must meet the power of agency from C. This power is likely to come from § 167 sec. 1 BGB, power of attorney. However, according to the case, D's main job only involves searching for art and the case does not explicitly or implicitly say that D was given a Declaration that grants D the rights to make the final say in a purchase agreement. Additionally, D was only given instructions to purchase a wolf sculpture from A and not a hunting dog sculpture. Therefore, it is possible that D has violated his power of agency from C. This means that the third condition of an effective agency is not met. In conclusion, it is likely that an effective agency does not exist and that D could be subjected to the consequences of § 179 BGB if he does not have proof of his power of agency and that A does not wish to ratify the contract.

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Use Structure Levels

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After D bought a sculpture looking very close to the desired sculpture C intentionally wanted, it is questionable, whether D did represent C effectively, when he concluded the contract with A. under § 164 ff. BGB

In order to examine whether D did represent C effectively, ~~whether~~ it must be examined that D is an agent for C. § 164 I 1³⁵⁸ states: "A declaration of intent which a person makes". As D is employed by C, they have concluded a contract. Hence, the DoI by D is made.

For effective agency, it is also important that for the third party it must be clear that the agent (D) acts on behalf of another person (C), § 164 I 1 BGB "in the name of the principle".

§ 164 I 2 states, that "it is irrelevant whether the declaration is made explicitly in the name of the principal, or whether it may be gathered from the circumstances that it is to be made in his name".

A. It is necessary to examine if Art dealer D effectively represents art collector C when he concludes the contract with artist A pursuant to § 164 BGB. Therefore an agency consisting of three requirements must be fulfilled.

I. First, there must be an own declaration of intent by D pursuant to § 164 I 1 BGB.

1. An offer should be given. As A presents his sculptures in his studio for customers to buy, A offers an invitation to make an offer, called "invitatio ad offerendum".

2. Thus, an offer by D must be given. D wants to buy a hunting dog sculpture of bronze. With this he makes an offer to A.

3. Consequently, an acceptance by A

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Correct Citation

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Business Law I

Legal opinion style - case

D could have effectively represented C as an agent pursuant to § 164 sec. 1 BGB when he concluded the contract with A.

For an effective agency a declaration of intent has to be made in the name of the principal within the scope of the power of agency (§ 164 I 1 BGB).

An own declaration of intent is a statement or an action to achieve a distinct legal outcome.

In the given case D has bought the sculpture from A. Therefore it is reasonable to assume that they have concluded a valid purchase agreement pursuant to § 433 I.

Hence an own declaration of intent is given.

Secondly, The agent, here D, has to declare that he is acting on the principal's, here C's, behalf. This declaration can be made explicitly or implicitly pursuant to § 164 I 2.

After D bought a sculpture looking very close to the desired sculpture C intentionally wanted, it is questionable, whether D did represent C effectively, when he concluded the contract with A. under § 164 ff. BGB.

In order to investigate further, whether D did represent C effectively, ~~whether~~ it must be examined that D is an agent for C. § 164 I 1 ^{BGB} states: "A declaration of intent which a person makes". As D is employed by C, they have concluded a contract. Hence, the DoI by D is made.

For effective agency, it is also important that for the third party it must be clear that the agent (D) acts on behalf of another person (C). § 164 I 1 BGB "in the name of the principal".

§ 164 I 2 states, that "it is irrelevant whether the declaration is made explicitly in the name of the principal, or whether it may be gathered from the circumstances that it is to be made in his name".

Answer the Case Question

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Question:

Did D effectively represent C when he concluded the contract with A?

Did A and C conclude valid purchase agreement and if no, can A claim payment of D?

I. Unauthorised agent §179 I BGB

1. Own DoI by C §164 I BGB (+)
 - D wants to buy the dog sculptures.
2. Principles of publicity §164 I (+)
 - D tells A that he wants to buy the dog sculpture in the name of C.

As we were not sure whether we should also include §§433, 179 BGB, we will formulate another solution. (If it was not required by the case question we assume it could be the following:

Solution:

I. Valid contract? (acc. to §433) (+)

1. Essentialia negotii ✓
2. Two matching DoI (offer & acceptance)

II. Valid agency?

Use the IRAC Scheme

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Judgement style

I. Own Declaration of intent by agent

The own DoI is given in this case, as D bought the hunting dog statue from A.

Legal opinion style:

Issue

Relevant law

Application

Conclusion

1. Own Declaration of Intent

A person needs to express an own declaration of intent

This is a declaration which a person makes §164 I 1 BGB

D bought a hunting dog sculpture from A, thus we can assume that he expressed his own will to enter the contract.

D expressed his own declaration of intent.

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Useful formulations for a legal opinion

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Issue

Hypothesis for your
legal opinion

- A could have a claim against B for XXX (§§§). [claim]
- There could/must be XXX. [condition]
- Questionable is, if XXX is given. [condition]

Relevant Law

Conditions to test

- XXX is/means YYY. [definition]
- In order for XXX to be fulfilled, YYY must be given. [subcondition]
- For this, YYY is necessary/needed/required. [subcondition]

Application

Check whether case
facts hold the conditions

Use information from the case facts
No signal words required
Phrases like „in this case“ are not necessary

Conclusion

Hypothesis can be
confirmed (or not)

- This means, XXX is given/fulfilled.
- Consequently, this condition is met.
- As a(n interim) result, XXX exists.

Task

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- Formulate a legal opinion with each others help on paper

45 min

- Switch your legal opinion with another student
- Fill out the correction sheet for the legal opinion that you've received

15 min

- Switch the legal opinion that you received and the corresponding correction sheet back
- Discuss solution with the other students
- Improve your own legal opinion with help of the correction sheet

10 min

Thank you for your
attention!

